

STATE OF MICHIGAN JUDICIAL CIRCUIT COUNTY	MOTION AND ORDER TO SHOW CAUSE FOR CONTEMPT (CUSTODY/PARENTING TIME)	CASE NO. and JUDGE
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Court address

Court telephone no.

Plaintiff's name, address, and telephone no.

Attorney:

v

Defendant's name, address, and telephone no.

Attorney:

MOTION

1. On _____ an order
Date
was entered regarding:

2. The friend of the court has received information
that _____
Name

violated the order ☐ as indicated in the attached.

☐ as follows:

USE NOTE: This form is for use by the friend of the court. Parties should use form MC 230.

3. The friend of the court requests the court to issue an order to show cause why _____
should not be held in contempt for violation of the court order. Name

Date

Friend of the court

ORDER

IT IS ORDERED: (See included notice)

4. _____ shall appear before this court on _____ at
Name Date and time

_____ to show cause why he/she should not be held in contempt for failure to
Location

comply with the court's order. ☐ Both parties should contact _____
one business day before this date to find out if their attendance is still required.

5. If the person named above fails to appear, a bench warrant may be issued for his/her arrest.

6. If contempt is found, the court may apply any enforcement remedy allowed under the law.

7. If the complaining party fails to appear, the contempt proceeding may be dismissed.

☐ 8. This matter will be heard before a referee.

Judge signature and date

If you require accommodations to use the court because of a disability, or if you require a foreign language interpreter to help you fully participate in court proceedings, please contact the court immediately to make arrangements. When contacting the court, provide your case number(s).

CERTIFICATE OF MAILING

I served a copy of this motion and order and notice (below) on the parties or their attorneys by first-class mail addressed to their last-known addresses as defined by MCR 3.203. I declare under the penalties of perjury that this certificate of mailing has been examined by me and that its contents are true to the best of my information, knowledge, and belief.

Date

Signature

NOTICE TO PARENTS

A motion is being filed requesting the court to issue an order to show cause why you should not be held in contempt for violating a parenting-time/custody order or a makeup and ongoing parenting-time schedule.

If this motion is for violating a parenting-time order, please read the following:

At the show-cause hearing, if the court finds either parent has violated a parenting-time order without good cause, the court shall find that parent in contempt and may do one or more of the following:

1. Require additional terms and conditions consistent with the court's parenting-time order.
2. After notice to both parties and a hearing, if requested by a party, on a proposed modification of parenting time, modify the parenting-time order to meet the best interests of the child.
3. Order that makeup parenting time be provided for the wrongfully denied parent to take the place of wrongfully denied parenting time.
4. Order the parent to pay a fine of not more than \$100.00.
5. Commit the parent to the county jail or an alternative to jail.
6. Commit the parent to the county jail or an alternative to jail with the privilege of leaving the jail or other place of detention during the hours the court determines necessary, and under the supervision the court considers necessary, for the purpose of allowing the parent to go to and return from his or her place of employment.
7. If the parent holds an occupational, driver's, recreational, or sporting license, condition the suspension of the parent's license(s) upon noncompliance with an order for makeup and ongoing parenting time.
8. Order the parent to a community corrections program.
9. Place the parent under the supervision of the office for a term fixed by the court with reasonable conditions, including that the parent do one or more of the following:
 - (i) Participate in a parenting program.
 - (ii) Participate in drug or alcohol counseling.
 - (iii) Participate in a work program.
 - (iv) Seek employment.
 - (v) Participate in other counseling.
 - (vi) Continue compliance with a current support or parenting-time order.
 - (vii) Enter into and comply with an arrearage payment plan.
 - (viii) Facilitate makeup parenting time.

At the show-cause hearing if the court finds that a party to a parenting-time dispute has acted in bad faith, the court shall order the party to pay a sanction of not more than \$250.00 for the first time the party is found to have acted in bad faith, not more than \$500.00 for the second time, and not more than \$1,000.00 for the third or subsequent time. If the court finds that a party to a parenting-time dispute has acted in bad faith, the court shall order the party to pay the other party's costs.

You have the right to a hearing on a proposed modification of parenting time if you request one within 21 days after the date this motion is mailed to you.